Section 8: Legal & Policy

LEGAL STATEMENT

Unless otherwise indicated, EvalzNow © is the intellectual property, and it is the original expression of Ricky D. Butler (the Creator). All source codes, database builds, functionality, designs, logos, theories, proprietary techniques, utilities, modules, and methodologies are owned, are controlled, and are licensed to the Creator under applicable copyright laws and unfair competition laws of the United States, foreign jurisdictions, and international conventions – whichever is more severe.

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The aforementioned restrictions above also apply to the novel concept of Competency Accounting, which is an innovative idea that belongs to Ricky D. Butler, the mathematical modeling schemes, the use of interactions, and other documented items. These works cannot be applied in any manner, direct or indirect, without the written approval of the Creator. Any unlawful use of the concept of Competency Accounting or documented items is also subject to applicable copyright laws and unfair competition laws of the United States, foreign jurisdictions, and international conventions – whichever is more severe.

For Fair Use cases, any entity using copyrighted material for, but not limited to, criticism, commentary, news reporting, teaching, scholarship, research, or informative purposes must attribute the work to the Creator. The attribution/permission is required regardless of the non-commercial intent, the educational intent, the scientific intent, or the historical intent, even if the purpose is transformative. Please reach out to the EvalzNow team for general inquiries or official requests.

End Users, however, are free to use data outputs, data analytics, data extractions, and data reports at their lawful discretion in good faith. By using EvalzNow, end users agree not to weaponize the software in any way; and, they shall indemnify Ricky D. Butler and delegated service providers of EvalzNow from any wrongful and unlawful use.

All Users accept the legal statement, the policies, and any listed terms & conditions upon using EvalzNow.

PRIVACY POLICY

This Privacy Policy describes our policies and procedures on the collection, use, and disclosure of user information when the user uses the service. We use user data/feedback to provide and to improve the service. By using the service, the user agrees to the collection and the use of information in accordance with this Privacy Policy.

DEFINITIONS

For the purposes of this Privacy Policy:

Account means a unique account created for a client to access our service or parts of our service.
Affiliate means an entity that controls, that is controlled by, or that is under common control with a party, where "control" means ownership of 50% or more of the shares, equity interest, or other securities entitled to vote for election of directors or other managing authority.
Application means the software program (EvalzNow) provided by the Company to the client on any device.
Company (referred to as either "the Company", "We", "Us" or "Our" in this Agreement) refers to the EvalzNow developmental entity or servicing entity assigned to the client by Ricky Butler (Creator).
Country refers to the country where the application is applied.
Device means any device that can access the service, such as a computer, a cellphone, or a digital tablet.

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Personal Data is any information that relates to an identified or identifiable individual, user representative, registered client, or individual receiving/obtaining the service.
Service refers to the software application or the website or both.
Service Provider means any natural or legal person/entity who/that processes the data on behalf of the company. It refers to third-party companies or individuals employed by the company to facilitate the service, to provide the service on behalf of the company, to perform services related to the service, to support troubleshooting of the service (i.e. ticketing), or to assist the company in analyzing how the service is used.
Third-Party Service refers to any website through which a user can log in or create an account to use the service.
User (or "Client") means the individual accessing or using the service, or the company, or other legal entity on behalf of which such individual is accessing or using the service, as applicable.
Usage Data refers to data collected, either generated by the use of the service or from the service infrastructure itself (for example, the duration of a page visit).
Website refers to any domain hosting or computing server providing the EvalzNow software.

TYPES OF DATA COLLECTED

PERSONAL DATA

While using our service, we may ask the client to provide us with certain personally identifiable information that can be used to contact or to identify the client or a client account.

USAGE DATA

Usage Data, which is owned by respective clients, is collected or stored in cloud servers subject to customer requirements, Personally Identifiable Information (PII) compliance, Cybersecurity Maturity Model Certification (CMMC) compliance, and regulatory frameworks.

TRACKING TECHNOLOGIES AND COOKIES

No browser cookies or similar tracking technologies whatsoever can be used to track the activity on the website accompanying our service. We collect information/feedback directly from clients and server analytics to improve and to analyze our service as well as server traffic loads/metrics.

USE OF CLIENT PERSONAL DATA

Our company may use personal data for the following purposes:

- To provide and to maintain our service, including to monitor the usage of our service.
- To manage client accounts and to manage registrations of the service. The personal data the client provides can give the client access to different functionalities of the service that are available to the client as a registered user. All functionalities and roles are controlled by authorized admins.
- For the performance of a contract: The development, compliance, and undertaking of the subscription contract for the products, items, or services the client has purchased or of any other contract with us through the service.
- To contact the client: To contact the client regarding updates or informative communications related to functionalities, products, or contracted services, including security updates, when necessary or reasonable for their implementation.
- To manage client requests: To attend and to manage all client requests to us – technical and non-technical.

We may share client personal information in the following situations:

- **With Service Providers:** We may share client personal information with service providers to monitor, to support, to manage, and to analyze our service.
- **For business transfers:** We may share or transfer client personal information in connection with, or during negotiations of, any merger, sale of company assets, financing, or acquisition of all or a portion of our business to another company.
- **With Affiliates:** We may share client information with our affiliates, in which case we will require those affiliates to honor this Privacy Policy. Affiliates include our parent company and any other subsidiaries, joint venture partners, or other companies that we control or that are under common control with us.
- **With Client Consent**: We may disclose client personal information for any other purpose with client consent.
- **With Legal Authorities**: We must comply with all court orders and legal investigations.

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TRANSFER OF CLIENT PERSONAL DATA

Client information, including Client personal data, is processed and stored in secure cloud servers (dedicated) and in any other places where the parties involved in the processing are located. It means that this information may be transferred to — and maintained on — computers or data center servers located outside of the client's state, province, country or other governmental jurisdiction where the data protection laws may differ from those of the client's jurisdiction.

User consent to this Privacy Policy followed by user submission of such information represents user agreement to that transfer.

Our company will take all steps reasonably necessary to ensure that client data is treated securely and in accordance with this Privacy Policy, and no transfer of client personal data will take place to an organization or a country unless there are adequate controls in place, including the security of client data and other personal information.

DISCLOSURE OF CLIENT PERSONAL DATA

BUSINESS TRANSACTIONS

If our company is involved in a merger, acquisition, or asset sale, client personal data may be transferred. We will provide notice before client personal data is transferred and becomes subject to a different Privacy Policy.

LAW ENFORCEMENT

Under certain circumstances, the company may be required to disclose client personal data if required to do so by law or in response to valid requests by public authorities (e.g., a court or a governmental agency).

OTHER LEGAL REQUIREMENTS

The company may disclose client personal data in the good faith belief that such action is necessary to:

- Comply with a legal obligation
- Protect and defend the rights or property of the company
- Prevent or investigate possible wrongdoing in connection with the service
- Protect the personal safety of users of the service or the public
- Protect against legal liability
- Protect against the weaponization of the software

SECURITY OF CLIENT PERSONAL DATA

The security of client personal data is important to us, but remember that no method of transmission over the Internet or method of electronic storage is 100% secure. While we strive to use commercially acceptable means to protect client personal data, we cannot guarantee its absolute security.

We may update our privacy policy from time to time. We will notify clients of any changes by posting the new privacy policy within the software application. Moreover, we will let clients know via email and/or a prominent notice on our service prior to the change becoming effective and update the "Last updated" date at the top of this privacy policy.

Clients are advised to review this Privacy Policy periodically for any changes.

CONTACT US

If clients have any other questions, please reach out to the EvalzNow team.

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